

**IN THE COUNTY COURT IN AND FOR PASCO COUNTY, FLORIDA
CIVIL DIVISION 6-B**

SWEET LIVING, INC.,

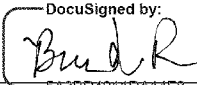
Plaintiff,

vs.

CASE NO.: 2026CC001256CCAXES

BRANDI RODGERS,

Defendant.

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**DEFENDANT'S MOTION TO CONFIRM DEMAND FOR JURY TRIAL OR, IN THE
ALTERNATIVE, FOR LEAVE TO DEMAND JURY TRIAL OUT OF TIME**

COMES NOW Defendant, BRANDI RODGERS, appearing pro se, pursuant to Article I, Section 22 of the Florida Constitution, Florida Rule of Civil Procedure 1.430, and the Seventh Amendment to the Constitution of the United States, and respectfully moves this Honorable Court to confirm Defendant's previously made demand for trial by jury, or, in the alternative, to grant Defendant leave to demand a jury trial out of time and to order this case to be tried by jury on the Court's own motion. In support, Defendant states:

I. THE CONSTITUTIONAL AND STATUTORY RIGHT

Article I, Section 22 of the Florida Constitution provides that "[t]he right of trial by jury shall be secure to all and remain inviolate." Fla. R. Civ. P. 1.430(a) implements that guarantee:

"The right of trial by jury as declared by the Constitution or by statute shall be preserved to the parties inviolate."

Plaintiff's Complaint seeks not only possession but also a money judgment for back lot rent, attorney's fees, and costs against Defendant individually. A claim for money damages is a legal claim. Defendant has a constitutional and statutory right to a jury determination of any disputed money issue.

II. DEFENDANT TIMELY DEMANDED A JURY

1. Plaintiff initiated this action under summary procedure pursuant to Fla. Stat. § 51.011 and Fla. Stat. § 723.061(3).
2. Within the five-day responsive window required by § 51.011, Defendant filed a responsive document with the Pasco County Clerk of Court (the "Response") in which Defendant checked the box demanding a JURY TRIAL.
3. Fla. R. Civ. P. 1.430(b) provides that "[a]ny party may demand a trial by jury of any issue triable of right by a jury by serving upon the other party a demand therefor in writing at any time after commencement of the action and not later than 10 days after the service of the last pleading directed to such issue. The demand may be indorsed upon a pleading of the party."

4. The Response was filed and served within five days of service of the Complaint — well within the ten-day post-pleading window of Rule 1.430(b). Indorsement of a jury demand upon Defendant's responsive pleading is expressly authorized by the Rule.
5. On information and belief, the Pasco County Clerk's electronic file does not fully reflect every document Defendant submitted. Defendant has obtained or will obtain a file-stamped copy of the Response showing the jury-trial demand and will provide it to the Court.
6. At the March 20, 2026 Zoom hearing, the jury-trial demand was not addressed. To the extent the absence of a ruling at that hearing constitutes any waiver of Defendant's demand, Defendant did not consent to such a waiver and reserves all rights.

III. ALTERNATIVELY, THE COURT SHOULD GRANT LEAVE OR ORDER A JURY TRIAL ON ITS OWN MOTION

Fla. R. Civ. P. 1.430(d) provides in pertinent part:

"A party who fails to serve a demand as required by this rule waives trial by jury. However, if waived, a jury trial may not be granted without the consent of the parties, but the court may allow an amendment in the proceedings to demand a trial by jury or order a trial by jury on its own motion. A demand for trial by jury may not be withdrawn without the consent of the parties."

To the extent the Court were to find that Defendant did not timely demand a jury (a finding Defendant disputes), Defendant respectfully requests that the Court (i) allow Defendant to amend his pleading to formally demand a jury, and (ii) order the case tried by jury on the Court's own motion. The factors that ordinarily counsel exercise of this discretion are present here: Defendant appears pro se, the demand was made on the very first responsive filing, the demand was overlooked through no fault of Defendant, the trial has not yet commenced, and Plaintiff suffers no prejudice from a jury trial on a legal money claim.

IV. WHICH ISSUES ARE TRIABLE BY JURY

Fla. R. Civ. P. 1.430(b) further provides that "[i]n the demand a party may specify the issues that the party wishes so tried; otherwise, the party is deemed to demand trial by jury for all issues so triable." Defendant hereby specifies, without limitation, the following issues for jury trial:

7. Whether Defendant is the "owner" or "tenant" of the Mobile Home within the meaning of Fla. Stat. §§ 319.22(2), 723.003, and 723.061;
8. Whether Plaintiff complied with the notice and procedural prerequisites of Fla. Stat. §§ 723.061 and 723.063;
9. The amount, if any, of lot rent allegedly owed and by whom;
10. The reasonableness and necessity of any attorney's fees and costs claimed by Plaintiff;
11. All factual issues raised by Defendant's affirmative defenses and any counterclaim or third-party complaint.

V. PRAYER FOR RELIEF

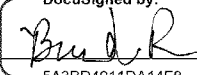
WHEREFORE, Defendant respectfully requests that this Honorable Court:

12. CONFIRM Defendant's timely demand for jury trial and ORDER this matter set for trial by jury on all triable issues;
13. In the alternative, GRANT Defendant leave to amend pursuant to Fla. R. Civ. P. 1.430(d) and ORDER a jury trial on the Court's own motion; and
14. GRANT such further relief as the Court deems just and proper.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on May 21, 2026, a true and correct copy of the foregoing was furnished by ☐ U.S. Mail, ☒ email, ☐ hand delivery to: Keith Wynn, Esq., counsel for Plaintiff, at the address and email of record with the Pasco County Clerk of Court.

Respectfully submitted,

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BRANDI RODGERS, Defendant pro se

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